

- [1] PLAINTIFF ANDRE NAVE-HERNANDEZ’S MOTION TO COMPEL FURTHER RESPONSES FROM DEFENDANT **SRGA RESORT, LP**, TO FORM INTERROGATORIES EMPLOYMENT, SET ONE, REQUEST FOR PRODUCTION, SET ONE, AND SPECIAL INTERROGATORIES, SET ONE, AND FOR SANCTIONS

APPEARANCE REQUIRED: The Court would like to hear from the Parties regarding the instant motion.

Plaintiff Andre Naves-Hernandez moves, pursuant to Code of Civil Procedure, sections 2030.300, subdivision (d), 2031.310, subdivision (h), 2023.030, subdivision (a), and 2023.040, for an order compelling Defendant SRGA Resort LP (SRGA) to produce further responses to Plaintiff’s Form Interrogatories Employment, Set One., Nos. 200.1, 200.4, 200.6, 201.4, 201.5, 201.6, 207.1, 207.2, 211.1, 211.2, 214.1, 214.2, 215.1, 215.2, 216.1, Request for Production, Set One., Nos. 1-12, and Special Interrogatories, Set One, Nos. 1-6. Plaintiff also moves for an award of monetary sanction against SRGA in the amount of \$1,560.00.

- [2] PLAINTIFF ANDRE NAVE-HERNANDEZ’S MOTION TO COMPEL FURTHER RESPONSES FROM DEFENDANT AUBERGE RESORTS, LLC, TO FORM INTERROGATORIES EMPLOYMENT, SET ONE, REQUEST FOR PRODUCTION, SET ONE, SPECIAL INTERROGATORIES, SET ONE, REQUEST FOR ADMISSIONS, SET ONE, SPECIAL INTERROGATORIES, SET TWO, FORM INTERROGATORIES GENERAL, SET ONE, AND FOR SANCTIONS

TENTATIVE RULING: The motion is CONTINUED to August 6, 2026, at 8:30 a.m. in Dept. A. The parties are ordered to engage in additional meet and confer efforts in light of the discussion below. The parties are directed to file, not later than July 31, 2026, either a Joint Supplemental Separate Statement, or respective Supplemental Separate Statements identifying, for the Court, which disputes have been resolved, and for each that remains in contention, the arguments for and against the motion to compel further production, in light of the parties’ meet and confer efforts.

Plaintiff Andre Naves-Hernandez moves, pursuant to California Code of Civil Procedure Sections 2030.300, subdivision (d), 2031.310, subdivision (h), 2023.030, subdivision (a), 2023.040, and 2033.290, for an order compelling Defendant Auberge Resorts, LLC (Auberge), to provide further responses to Plaintiff’s Form Interrogatories Employment, Set One, Nos. 200.1, 200.4, 200.6, 201.4, 201.5, 201.6, 207.1, 207.2, 211.1, 211.2, 214.1, 214.2, 215.1, 215.2, 216.1; Request for Production, Set One, Nos. 1-12; Special Interrogatories, Set One, Nos. 1-6; Request for Admissions, Set One, Nos. 1, 4-6, 9-18, 20-32; Special Interrogatories, Set Two, Nos. 7-29; and Form Interrogatories General, Set One, Nos. 4.1, 12.1, 12.2, 12.3, 12.4, 12.5, 12.6, 12.7, 13.1, 13.2, 17.1. Plaintiff also moves for an award of monetary sanctions against Auberge in the amount of \$1,560.00.

“‘It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) ... that civil discovery be essentially self-executing. [Citation.]’ [Citation.] A self-executing discovery system is ‘one that operates without judicial involvement.’ [Citation.] Conduct frustrates the goal of a self-executing discovery system when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. [Citation.]” (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291-1292.)

It appears, from the scope and nature of the present motion, and the parties’ respective arguments, that counsels’ meet and confer efforts have been perfunctory. The parties are directed to redouble those efforts in light of the following.

Plaintiff first contends that Auberge’s initial responses to the subject discovery are improper because they include preliminary statements and general objections. (See Support Memo at 3:11-4:9.) Plaintiff correctly notes that the Civil Discovery Act requires a responding party to respond separately to each interrogatory and to each request for production. It does not necessarily follow, however, that the inclusion of preliminary statements and/or general objections renders an otherwise proper response improper. Plaintiff fails to cite to authority supporting the suggestion that the Court has authority to order a responding party to serve further responses simply because they have included, in responses, superfluous matters and/or objections.

Similarly, Plaintiff contends that Auberge “must withdraw its meritless objections” to the subject discovery. (See Support Memo at 4:10-11.) However, Auberge is entitled to assert whatever objections it feels are appropriate. The question of whether they are meritorious is for the Court, on motion to compel or motion for protective order. Plaintiff fails to cite to authority providing that the Court may order a responding party to withdraw objections – even meritless objections – that are timely and properly asserted.

As Auberge notes in its Responsive Separate Statement, as to most of the subject discovery, Plaintiff does not specifically contend or argue that the responses are insufficient. Rather, Plaintiff repeatedly argues that Auberge’s objections are meritless, and then states, “[p]lease withdraw your objections and confirm that your answer is complete.” (See, *e.g.*, Separate Statement at 8:9-10; see also Responsive Separate Statement at 12:6-7 [“Plaintiff does not take issue with the extent of the substantive response to this interrogatory but rather focuses on the objections that were made”].)

On the other hand, the Court shares Plaintiff’s frustration with Auberge’s failure and refusal simply to state whether it is withholding information or documents based on its asserted objections. The Court notes Auberge’s tendency to assert the same objections, without apparent discrimination, and in boilerplate fashion, to each discovery request. The Court also notes Auberge’s failure to clearly state, through its Responsive Separate Statement, whether, and if so to what extent, it is withholding information based on specific objections. Similarly, Auberge fails to state whether its answers are complete. In fact, Auberge’s Responsive Separate Statement, by asserting the validity of certain objections, strongly suggests that Auberge *is*, in

fact, withholding information based on objections. (See, *e.g.*, Responsive Separate Statement at 12:11-21.)

The Court is sympathetic to Plaintiff's argument that Auberge's responses are evasive in light of the number and boilerplate style of objections asserted, and its unwillingness to clearly state whether the substantive responses are complete. Moreover, Auberge's asserted justifications for many of its objections are strikingly abstract of discussion of the discovery request at issue.

In light of the foregoing, the Court orders the parties to further meet and confer. Auberge is ordered to identify for Plaintiff, in a writing served no later than July 23, 2026, each of the subject discovery requests as to which it is withholding information and/or documents based on an objection. For each, it shall identify the objection(s) and provide a brief argument, *specific to the subject request and the specific objection*, supporting its decision to withhold the information. The parties shall then meet and confer in an attempt to resolve any disputes regarding such withholding.

Finally, the parties shall inform the Court, by filing one or respective Supplemental Separate Statements which of the particular discovery requests remain at issue in advance of the continued hearing.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Conservatorship of Beverly J. Ribelin

19PR000041

[1] FOURTH ACCOUNT AND REPORT OF CONSERVATOR; PETITION FOR ALLOWANCE OF FEES TO CONSERVATOR OF THE ESTATE AND ATTORNEY FOR CONSERVATOR

[2] BIENNIAL REVIEW

TENTATIVE RULING: The Petition is GRANTED, including fees as prayed. After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial and for an Accounting in two years on July 18, 2028, at 8:30 a.m. in Dept. B. All accounting documents must be filed at least 30 days prior to the hearing. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

The June 03, 2027, Review Hearing is VACATED.

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